

CITY OF BALTIMORE
ORDINANCE 26-085
Council Bill 25-0096

Introduced by: Councilmember Gray
Cosponsored by: Councilmembers Paker, Dorsey, Conway, Torrence, Bullock, Porter, Blanchard,
and Ramos
Introduced and read first time: September 15, 2025
Assigned to: Public Health and Environment Committee
Committee Report: Favorable, with Amendments
Council action: Adopted
Read second time: January 12, 2026

AN ORDINANCE CONCERNING

Parking for Disabled Individuals and Helpers – Modifications

FOR the purpose of removing certain permit renewal requirements for an individual with a disability; allowing a certain individual to submit notice to the Department of Transportation that a reserved parking permit is no longer needed; removing certain obsolete language; and generally relating to parking for disabled persons and helpers.

BY repealing and re-ordaining, with amendments,
Article 31 - Transit and Traffic
Sections 9-1 to 9-3, 9-11, and 9-12
Baltimore City Code
(Edition 2000)

BY repealing and re-ordaining, without amendments,
Article 31 - Transit and Traffic
Sections 9-4, and 9-13 to 9-15
Baltimore City Code
(Edition 2000)

SECTION 1. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE, That the Laws of Baltimore City read as follows:

EXPLANATION: CAPITALS indicate matter added to existing law.
[Brackets] indicate matter deleted from existing law.
Underlining indicates matter added to the bill by amendment.
~~Strike-out~~ indicates matter stricken from the bill by amendment or deleted from existing law by amendment.

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Baltimore City Code

Article 31. Transit and Traffic

Subtitle 9. Parking for Disabled [Persons] INDIVIDUALS and Helpers

Part I. Reserved Parking for Disabled [Persons] INDIVIDUALS

§ 9-1. Criteria for obtaining.

(a) *In general.*

A disabled [person] INDIVIDUAL may be eligible for a reserved parking space if the person INDIVIDUAL meets the following criteria:

- (1) the disability of the [applicant must be] INDIVIDUAL IS permanent or of a nature expected to adversely affect the [applicant] INDIVIDUAL for at least 1 year;
- (2) the [applicant must be] INDIVIDUAL IS unable to use public transportation, leaving a personal vehicle as the only means of transportation;
- (3) the [applicant must be] INDIVIDUAL IS the sole operator of the vehicle or, if the [applicant] INDIVIDUAL is dependent upon a non-handicapped driver for transportation, the driver must reside in the same [household;] DWELLING;
- (4) A parking space [must be] IS available that is not restricted by other parking regulations;
- (5) off-street parking is not available, such as a driveway, garage, or parking pad, on the [applicant's] INDIVIDUAL'S property; and
- (6) the [applicant] INDIVIDUAL submits an application in the form that the Director of Transportation requires.

(b) *Required [statements.] STATEMENT.*

[(1)] The application shall be accompanied [by:]

[(i)] BY a physician's statement, dated within the previous 6 months, describing the nature and anticipated duration of the disability and the disability's effect on the mobility of the [applicant; and] INDIVIDUAL.

[(ii)] signed statements approving the designation of reserved parking for the applicant from the 2 abutting property owners and from 4 additional property owners in the block.]

[(2)] The Director may waive the requirements of paragraph (1)(ii) of this subsection if:]

[(i)] the Director determines that there are not enough properties in the block to supply the necessary signatures; or]

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1 [(ii) the Director, in consultation with the Director of the Community Relations
2 Commission, determines that the applicant meets all other criteria for
3 obtaining a reserved parking space.]

4 **§ 9-2. Procedure.**

5 (a) *Application to Department.*

6 (1) Any [person] INDIVIDUAL desiring a reserved parking space and meeting the criteria
7 of § 9-1 of this subtitle may submit an application for a reserved parking permit to the
8 Department of Transportation.

9 (2) The Department shall review each application.

10 (b) *Approvals.*

11 [(1) If a determination is made] IF THE DEPARTMENT REVIEWS AN APPLICATION AND
12 DETERMINES that the applicant meets the criteria for a RESERVED PARKING space, [then:]
13 THEN THE DEPARTMENT SHALL ISSUE A PERMIT TO THE APPLICANT.

14 [(1) a temporary permit shall be issued; and]

15 [(2) an administrative regulation describing the location of the reserved space shall be
16 submitted to the City Council and shall be processed as described in § 2-6 of this
17 article.]

18 (c) *Denials.*

19 (1) If the Department determines that the applicant does not meet the criteria for a
20 reserved parking space, the Department shall so notify the applicant in writing stating
21 the reason for the denial of space.

22 (2) If the Department denies the permit, the applicant may appeal the decision to the
23 [Director. The Director] DIRECTOR, WHO shall review the case and may, in the
24 Director's discretion, reverse the denial and grant a temporary permit.

25 **§ 9-3. Use, renewal, and termination.**

26 (a) *Permit to be displayed.*

27 The permit [must] SHALL be clearly displayed whenever the vehicle is parked in the
28 reserved parking space.

29 (b) *Validation and renewal.*

30 [Reserved parking permits must be:]

31 [(1) validated upon the expiration of 6 months from their date of issue; and]

32 [(2) renewed each year in the manner and form determined by the Department.]

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(1) EVERY 5 YEARS, THE DEPARTMENT SHALL SEND A PERMIT HOLDER A DOCUMENT THAT AFFIRMS THE PERMIT HOLDER STILL REQUIRES THE USE OF THE PERMIT.

(2) UPON RECEIPT OF THE DOCUMENT UNDER THIS SUBSECTION, THE PERMIT HOLDER SHALL SIGN AND RETURN THE DOCUMENT TO THE DEPARTMENT IF THE PERMIT HOLDER STILL REQUIRES USE OF THE PERMIT.

(c) *Notice when no longer needed.*

(1) *NOTICE FROM PERMIT HOLDER OR HEIRS.*

The holder of a reserved parking permit or the holder's heirs shall notify the Department when a reserved parking space is [not] NO longer needed.

(2) *NOTICE FROM OTHER PARTY.*

ANY PERSON WHO REASONABLY BELIEVES THAT A PERMIT HOLDER HAS DIED, MOVED, OR OTHERWISE NO LONGER REQUIRES A RESERVED PARKING PERMIT MAY SUBMIT A REQUEST TO THE DEPARTMENT THAT THE DEPARTMENT:

(I) REVIEW THE PERMIT; AND

(II) IF NECESSARY, REQUIRE THE PERMIT HOLDER TO RESUBMIT THE DOCUMENTATION REQUIRED BY § 9-1 OF THIS SUBTITLE.

(d) *Revocation.*

[A reserved parking permit shall be revoked if:] THE DEPARTMENT SHALL REVOKE A RESERVED PARKING PERMIT IF:

(1) false statements are made in the application;

(2) the parking permit is misused;

(3) new parking regulations are imposed which prohibit parking at any time; OR

[(4) the City Council rescinds an administrative regulation pursuant to § 2-6 of this article; or]

(4) [(5)] the disabled [person] INDIVIDUAL dies, moves from the premises, or no longer needs the space.

(E) *BIANNUAL NOTICE.*

THE DEPARTMENT SHALL BIANNUALLY SEND A PERMIT HOLDER NOTICE THAT:

(1) CONFIRMS THE INDIVIDUAL HAS AN ACTIVE PERMIT;

(2) LISTS THE PERMIT HOLDER'S CONTACT INFORMATION AS IT APPEARS IN THE DEPARTMENT'S RECORDS; AND

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(3) INCLUDES INSTRUCTIONS FOR HOW A PERMIT HOLDER MAY UPDATE THEIR
CONTACT INFORMATION WITH THE DEPARTMENT.

§ 9-4. Forms, rules, and regulations; fees.

(a) *Forms, rules, and regulations.*

Subject to Title 4 {"Administrative Procedure Act – Regulations"} of the City General Provisions Article, the Director shall develop forms and adopt rules and regulations to carry out this Part 1.

(b) *Fees.*

(1) [The] SUBJECT TO THE APPROVAL OF THE BOARD OF ESTIMATES, THE Director may set and impose reasonable application and annual permit fees to help defray the cost of manufacturing, installing, and removing signs and otherwise administering this Part 1.

(2) The fees set under this subsection do not apply to and may not be imposed if the [applicant-permittee's] DISABLED INDIVIDUAL'S disability is, as shown on the physician's statement, permanent.

§§ 9-5 to 9-10. {Reserved}

Part II. Reserved Parking for Helpers

§ 9-11. "Disabled [person]" INDIVIDUAL defined.

In this Part, "disabled [person]" ~~INDIVIDUAL means a person~~ INDIVIDUAL" MEANS AN INDIVIDUAL who meets the physical criteria for obtaining a reserved parking space for a disabled [person.] INDIVIDUAL UNDER § 9-1 OF THIS SUBTITLE.

§ 9-12. Criteria and procedure for obtaining.

(a) *In general.*

[A person] AN INDIVIDUAL who regularly renders assistance to a disabled [person] INDIVIDUAL may apply to the Department of Transportation for a permit for 1 reserved parking space at the disabled [person's] INDIVIDUAL'S home.

(b) *Application.*

(1) The application shall be made jointly by the disabled [person] INDIVIDUAL and the disabled [person's] INDIVIDUAL'S designated helper.

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(2) The application shall be in the form that the Director requires and shall be accompanied [by:] BY

[(i)] a physician's statement, dated within the previous 6 months, describing the nature and anticipated duration of the disabled [person's] INDIVIDUAL'S disability and the disability's effect on the disabled [person's mobility; and] INDIVIDUAL'S MOBILITY.

[(ii)] signed statements approving the designation of reserved parking for the applicant from the 2 abutting property owners and from 4 additional property owners in the block.]

[(3)] The Director may waive the requirements of paragraph (2)(ii) of this subsection if the Director determines that there are not enough properties in the block to supply the necessary signatures.]

(c) Review.

The Department shall review each application to determine that:

(1) suitable off-street parking, such as a driveway, garage, or parking pad, is not available;

(2) suitable parking space not restricted by other parking regulations is available; and

(3) the disabled [person] INDIVIDUAL meets the criteria for a reserved parking space.

§ 9-13. Assignment of space; restrictions.

(a) Assignment.

On acceptance of the application, the Director shall designate and mark 1 space at a location to be determined by the Director.

(b) Restrictions.

(1) The Director may specify the days, times, location, and other restrictions the Director considers necessary in order to provide adequate parking in the neighborhood.

(2) Any reserved parking space may be designated by the Director for use by more than 1 helper.

§ 9-14. Annual permit.

(a) Issuance.

The Director shall issue to the designated helper a permit which shall be displayed in the manner prescribed by the Director.

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1 (b) *Renewal.*

2 Permits shall be renewed each year in the manner and form determined by the Director.

3 **§ 9-15. Forms, rules, and regulations; fees.**

4 (a) *Forms, rules, and regulations.*

5 Subject to Title 4 {"Administrative Procedure Act – Regulations"} of the City General
6 Provisions Article, the Director may develop forms and adopt rules and regulations to
7 carry out this Part 2.

8 (b) *Fees.*

9 (1) The Director may set and impose reasonable application and annual permit fees to
10 help defray the cost of manufacturing, installing, and removing signs and otherwise
11 administering this Part 2.

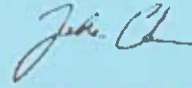
12 (2) The fees set under this subsection do not apply to and may not be imposed if the
13 disability of the [person] INDIVIDUAL being assisted is, as shown on the physician's
14 statement, permanent.

15 **§§ 9-16 to 9-20. {Reserved}**

16 **SECTION 2. AND BE IT FURTHER ORDAINED,** That this Ordinance takes effect on the 30th day
17 after the date it is enacted.

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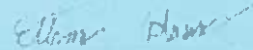
Certified as duly passed this 9th day of February, 2026



President, Baltimore City Council

Certified as duly delivered to His Honor, the Mayor,

this 10th day of February, 2026



Chief Clerk

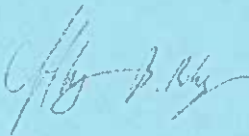
Approved this 24 day of February, 2026



Mayor, Baltimore City

Approved for Form and Legal Sufficiency.

this 10th day of February, 2026



Chief Solicitor